

Bhuvaneshwari vs Palanivelu on 27 August, 2024

C.R.

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 27..08..2024

Coram

THE HONOURABLE MR.JUSTICE V.LAKSHMINARAYANAN

Civil Revision Petition No.2777 of 2024

and

C.M.P.No.14722 of 2024

Bhuvaneshwari

-Versus-

Palanivelu

....

Petition filed under Article 227 of the Constitution of India, aside the judgement and decree dated 12.02.2019 made in I.A.No.138 of 2019 in H.M.O.P.No.19 of 2018 by the learned Judge, Family Court, Cuddalore.

For Petitioner	: Mr.R.Thirumoorthy
For Respondent	: Mr.S.Ravi

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ORDER

This civil revision petition is at the instance of the wife against an order dated 12.02.2019 passed by the learned Judge, Family Court, Cuddalore, in I.A.No.138 of 2018 in H.M.O.P.No.19 of 2019 refusing to grant interim maintenance allowance under Section 24 of the Hindu Marriage Act, 1955.

2. The civil revision petitioner married the respondent on 02.09.1985 and from the wedlock, a daughter was born on 28.06.1986 and a son was born on 02.06.1991. Due to disputes and differences, the civil revision petitioner and the respondent separated. The respondent/husband initiated H.M.O.P.No.19 of 2018 seeking for divorce under Section 13(1) (1-a) of the Hindu Marriage Act, 1955.

3. On being served with summons, the respondent/wife entered appearance and filed a detailed counter. She would plead that the respondent/husband developed another relationship and on

account of that fact, they separated. She would further plead that she brought the family around by resorting to tailoring job. It is not in dispute that, as on today, the daughter has been given off in marriage and the son has gone independent and is working.

4. The civil revision petitioner/wife being unable to maintain herself, filed an application in I.A.No.138 of 2018 for an interim direction to the respondent/husband to pay a monthly maintenance of Rs.15,000/- pending <https://www.mhc.tn.gov.in/judis> 2 of 9 disposal of main petition. That application came to be filed on 10.12.2018. On receipt of notice, a detailed counter was filed by the respondent/husband.

5. He would state that the civil revision petitioner/wife is presently living in a property which belongs to him along with her parents. He would also plead that the civil revision petitioner/wife is generating income to the tune of Rs.10,000/- per month by renting out the rear portion of his property.

6. The learned Judge of the Family Court at Cuddalore, after hearing both sides, dismissed the application on the ground that civil revision petitioner/wife has not denied the following statements of the respondent/husband:-

(i) she is residing in the property belonging to the respondent/husband; and

(ii) she is generating a sum of Rs.10,000/- per month by letting out the property belonging to the respondent/husband.

7. The learned Judge gave an additional reason stating that H.M.O.P.No.138 of 2018 having been filed in the year 2015 and the civil revision petitioner/wife having filed the maintenance application in 2018, there is a considerable delay and hence, the application for maintenance allowance does not deserve consideration.

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8. Aggrieved by the said order, the civil revision petitioner/wife is said to have filed a civil miscellaneous appeal in C.M.A.No.2472 of 2019. Pursuant to the order of a Division Bench of this Court that as against an order on the application for interim maintenance, an appeal is not maintainable, the appeal proceedings were closed and hence, the present revision has been filed by the wife.

9. Heard Mr.R.Thirumoorthy, learned counsel appearing for the civil revision petitioner/wife and Mr.S.Ravi, learned counsel appearing for the respondent/husband.

10. The learned counsel on either side reiterated the submissions they made before the court below.

11. In addition, Mr.S.Ravi would submit that the respondent/husband is getting only a sum of Rs.6,993/- per month as pension from the Tamil Nadu State Transport Corporation.

12. Mr.R.Thirumoorthy would submit that in addition to the pension of Rs.6,993/- per month, the respondent/husband is also eking out a living by doing real estate work.

13. I have carefully considered the arguments of both sides.

14. Insofar as the finding of the learned Judge of the Family Court that <https://www.mhc.tn.gov.in/judis> 4 of 9 there is a delay in seeking interim maintenance allowance I am unable to accept the said view. Under Section 24 of the Hindu Marriage Act, 1955, when a wife is unable to eke out a living for herself, law entitles her to file an application seeking for interim maintenance from the respondent/husband. The civil revision petitioner has specifically pleaded that she was doing tailoring job for 21 years and on account of the fact that she got aged, she is not in a position to do tailoring job now a days. This shows that the civil revision petitioner/wife had not troubled the respondent/husband for three years from the date of filing of the petition for divorce as she was able to maintain herself from the income that she got by doing tailoring jobs. Finding that she is unable to carry out the said job, she has invoked Section 24 of the Hindu Marriage Act. 1955.

15. Section 24 of the Hindu Marriage Act is a measure brought in for the purpose of ameliorating the unfortunate circumstances in which a wife is placed on account of initiation of the proceedings by the husband. Section 24 of the Hindu Marriage Act, 1955, being a welfare legislation, it requires to be interpreted in the light of the purposes for which the said provision has been brought about and the same can not be stultified by resorting to a technical plea like limitation and delay. Where the relationship between the parties is admitted and the wife plead that she is unable to take care of herself, the beneficial <https://www.mhc.tn.gov.in/judis> 5 of 9 umbrella of Section 24 of the Hindu Marriage Act unfolds itself to protect the wife from the vagrancies of life.

16. Now turning to the plea that the civil revision petitioner/wife is making a sum of Rs.10,000/- per month. This is a positive assertion made by the respondent/husband. A person who makes assertion must prove it and it is not for the person who defends such an assertion to prove the negative. No evidence has been let in by the respondent/husband before the court below regarding the income generated by the civil revision petitioner/wife. The respondent/husband did not deem it necessary to grace the witness box in order to substantiate this plea. Had he been done so, perhaps, the civil revision petitioner would have had an opportunity to prove that his assertion is wrong.

17. Apart from the bald statement made in the counter affidavit, there are no details of the name of the tenants or the amounts each of them is paying to the civil revision petitioner/wife. At best, it is the legal stand to defeat the claim of maintenance. Finding of the learned judge that the civil revision petitioner/wife has not disputed the same truly flummoxes me. A re-joinder to a counter is not mandatory in terms of Order VIII Rule 9 of CPC. For non filing of re-joinder or reply statement, it cannot be presumed that the statement made in the counter is true and genuine.

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18. The relationship having been admitted and the fact that the wife pleads that she is unable to maintain herself, she is entitled to the benefit of Section 24 of the Hindu Marriage Act, 1955.

19. This, however, does not mean that the civil revision petitioner/wife is automatically entitled to the sum demanded by her. There is no dispute that she is residing in the property belonging to the respondent/husband and therefore, she is saved from the paying rents. Still a person wherever she is residing, even as pointed out by Mr.Thirumoorthy, the civil revision petitioner/wife is residing in a remote village in Cuddalore District, she is still entitled to some amount in order to survive the litigation. As pointed out by Mr.S.Ravi, the respondent/husband is getting only around a sum of Rs.7,000/- per month as pension. In the light of the production of the pension order, I feel directing the respondent/husband to pay a sum of Rs.3,500/- per month to the civil revision petitioner/wife towards interim maintenance would serve the interest of justice.

In the result, the civil revision petition is allowed and the order dated 12.02.2019 passed by the learned Judge, Family Court, Cuddalore, in I.A.No.138 of 2018 in H.M.O.P.No.19 of 2018 is set aside. The application in I.A.No.138 of 2018 will stand allowed. The civil revision petitioner/wife is entitled to Rs.3,500/- per month towards interim maintenance from the <https://www.mhc.tn.gov.in/judis> 7 of 9 respondent/husband from the date of filing of the application in I.A.No.138 of 2018. No costs. Consequently, connected CMP is closed.

Index : yes / no
Neutral Citation : yes / no
Speaking / Non Speaking Order
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To

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V.LAKSHMINARAYANAN.J., kmk

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